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Case Number: 25STCV05703 Hearing Date: September 17, 2026 Dept: 224

Espitia v. FCA, US LLC

TENTATIVE RULING

The Court DENIES as moot Plaintiff's Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure section 871.26.

The Court GRANTS Plaintiff's Request for Monetary Sanctions in the amount of \$2,500.00 against Defendant FCA US LLC's counsel of record, payable to Plaintiff's counsel within 15 business days of this Order.

Motion to Compel Initial Disclosures

Plaintiff moves for an order compelling Defendant FCA US LLC to produce all documents required under section 871.26(h)(6)-(10) and (12)-(13) and imposing monetary sanctions against Defendant's counsel of record in the amount of \$2,500.00.

Untimely Opposition

Defendant's opposition was due September 3, 2026 and was filed September 10, 2026. Defense counsel declares that he contracted Influenza A shortly before the deadline, that his condition deteriorated to the point of a severe potassium deficiency requiring emergency treatment and hospitalization on September 9, 2026, and that he filed the opposition the day after his discharge, on the same day he received Plaintiff's notice of non-opposition. (Rivera Decl., ¶¶ 3-12.) The Court finds good cause to exercise its discretion and considers the late-filed opposition.

Legal Standards

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Civ. Proc. Code, § 871.26, subd. (b).) "The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): ... (6) Motor vehicle information reports, including build documentation, component information, and delivery details. (7) Entire warranty transaction history for the motor vehicle. (8) Listing of required field actions applicable to the motor vehicle. (9) Published technical service bulletins ("TSBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (10) Published information

service bulletins ("ISBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle... (12) Warranty policies and procedure manuals. (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle...." (Id. at § 871.26, subd. (h).)

"Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)."

(Id. at § 871.26, subd. (j).)

Section 871.26 is not of general application. It "only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20" and "only applies to a civil action filed on or after January 1, 2025." (Civ. Proc. Code, § 871.26, subds. (a), (l).) Senate Bill 26 (Stats. 2025, ch. 1), effective April 2, 2025, further conditioned the chapter on a manufacturer's election. Absent an election under section 871.29, "Sections 871.20 to 871.28, inclusive, shall not apply." (Civ. Proc. Code, § 871.29, subd. (b).) Section 871.30 created a one-time 30-day window for a manufacturer to elect as to vehicles sold new in 2025 and all prior years and provides that, absent that election, the chapter does not apply, "including actions already filed between January 1, 2025 and the effective date of the act adding this section." (Id. at § 871.30, subd. (c).)

Discussion

Plaintiff does not contend that Defendant failed to serve an initial disclosure production in its entirety. Defendant served a preliminary production of more than 1,000 pages on June 23, 2025, comprising the glove box documents, sales brochure, repair order detail report, vehicle information detail report, warranty claims records, Monroney label, and applicable TSBs and recalls. (Rivera Decl., ¶ 13, Ex. A.) Defendant declares that it conducted a diligent search and located no service contract claims records, Customer Assistance Inquiry Records, or Cherwell report. (Ibid.)

Defendant withheld four categories pending entry of a protective order: the FCA US Dealer Policy Manual, the Service Manual for the Subject Vehicle, the FCA US Warranty Administration Manual, and the policies and procedures of its Customer Assistance Center regarding customer complaints and requests for refund or replacement. On June 10, 2026, following execution of the Stipulation and Protective Order, Defendant served its complete production including those categories. (Rivera Decl., ¶ 16, Ex. B.) The Stipulation and Protective Order was entered June 15, 2026.

The withheld categories are the categories this Motion seeks to compel. Because Defendant has produced them, there is nothing left for the Court to order, and the Motion is denied as moot.

Sanctions

That Defendant ultimately produced does not answer whether it complied with subdivision (b). Subdivision (b) prescribes both what must be produced and when. Defendant's preliminary production on June 23, 2025 was timely. Its production of the four withheld categories on June 10, 2026 was not; it came approximately eleven months after the statutory deadline and nearly five months after this Motion was filed. Late compliance with subdivision (b) is noncompliance, and the sanction

prescribed by subdivision (j)(1) attaches unless Defendant shows good cause.

Defendant has not made that showing. Section 871.26 does not abrogate a manufacturer's right to seek protection for trade secrets or confidential commercial information, and the Court does not suggest otherwise. But the mechanism for obtaining that protection is a noticed motion under section 2031.060, subdivision (a), which requires a party to move "promptly." Defendant never moved. It instead conditioned a mandatory, self-executing statutory obligation on the other side's agreement to a stipulation, and withheld the documents for eleven months while that agreement remained unexecuted. A party may not unilaterally suspend a statutory disclosure deadline pending a stipulation it has no power to compel.

The record also does not support Defendant's account of the delay. Defendant attributes the delay to Plaintiff's "refusal to agree to an SPO." But the Stipulation and Protective Order filed in this action was executed by Plaintiff's counsel on September 18, 2025 and served on Defendant's counsel that same day. Defendant's counsel did not countersign until June 9, 2026. Defendant produced the confidential categories the following day. On this record, the roughly nine-month gap between Plaintiff's signature and Defendant's is attributable to Defendant, not Plaintiff.

Defendant's timely production of the remaining categories is relevant but not dispositive. Substantial compliance with some categories of subdivision (h) does not excuse noncompliance with others. (See Civ. Proc. Code, § 871.26, subd. (j)(1).)

The Court therefore imposes the mandatory \$2,500 sanction against Defendant's counsel of record under section 871.26, subdivision (j)(1), payable within 15 business days. The Court declines to require reporting to the State Bar under subdivision (j)(5).

Sanctions

Subdivision (b) prescribes both what must be produced and when. Where a party produces after the 60-day deadline, it has not complied with subdivision (b), and the \$2,500 sanction prescribed by subdivision (j)(1) attaches against the defense attorney unless that party "shows good cause." (Civ. Proc. Code, § 871.26, subd. (j).)

Defendant's preliminary production on June 23, 2025 was timely. However, its production of the four withheld categories on June 10, 2026 came approximately eleven months after the statutory deadline and nearly five months after this Motion was filed. Defendant never moved for a protective order. Defendant attributes the delay to Plaintiff's refusal to agree to a protective order, but the Stipulation and Protective Order filed in this action was executed by Plaintiff's counsel on September 18, 2025 and served on Defendant's counsel that same day; Defendant's counsel did not countersign until June 9, 2026, and produced the following day. Timely compliance as to other categories of subdivision (h) does not excuse noncompliance as to these.

Good cause not having been shown, the Court imposes the \$2,500 sanction against Defendant's counsel of record under section 871.26, subdivision (j)(1), payable within 15 business days.

Conclusion

Based on the foregoing, the Court DENIES as moot Plaintiff's Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure section 871.26.

The Court GRANTS Plaintiff's Request for Monetary Sanctions in the amount of \$2,500.00 against Defendant FCA US LLC's counsel of record, payable to Plaintiff's counsel within 15 business days of this Order.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.